

24LBCV00368 24LBCV00368

County: los-angeles

Division: Civil Law and Motion

Department: S25

Hearing date: 2026-06-25

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Case Number: 24LBCV00368 Hearing Date: June 25, 2026 Dept: S25

Motion: Plaintiff Shirley King's Motion to be Relieved as Counsel

Moving Party: Plaintiff Shirley King ("Plaintiff")

Responding Party: None

Tentative Ruling

The instant motion is GRANTED. Cal. Rules of Court, rule 3.1362(a), (c-e).

The Court will sign the Proposed Order with the following modifications.

The next scheduled hearing is the July 27, 2026 Case Management Conference at 8:30 a.m in Dept. S25. OSC re Proof of Service of Order to Be Relieved as Counsel scheduled for July 27, 2026 at 8:30.

Final Status Conference set for October 9, 2026 at 9:30 a.m in Dept. S25

Jury Trial set for October 12, 2026 at 9:30 a.m in Dept. S25.

Background

On February 20, 2024, Plaintiff filed a complaint against Defendants Saeid Mohtashami, DDS and Does 1 to 30, alleging a claim for dental malpractice.

On June 24, 2024, Defendant Saeid Mohtashami, DDS filed an answer. On August 27, 2024, Plaintiff filed a Doe Amendment, substituting Doe 1 with Philip Konopa, DDS. On October 28, 2024, Defendant Philip Konopa, DDS filed an answer. On September 16, 2025, the Court denied Defendant's motion for summary judgment. (September 16, 2025 Minute Order.)

On May 17, 2026, Plaintiff filed the instant motion to be relieved as counsel.

Legal Standard

An attorney in an action may be changed at any time before or after judgment or final determination upon the order of the court, upon the application of either client or attorney, after notice from one to the other. (Code Civ. Proc., § 284, subd. (2).) California Rules of Court, rule 3.1362 requires:

Notice of motion and motion to be directed to the client (made on the Notice of Motion and Motion to be Relieved as Counsel Civil form (MC-051));

A declaration stating in general terms, and without compromising the confidentiality of the attorney client relationship, why a motion under CCP §284(2), is brought instead of filing a consent under CCP §284(1) (made on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel Civil form (MC-052));

Service of the notice of motion and motion and declaration on all other parties who have appeared in the case; and

The proposed order relieving counsel (prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel Civil form (MC-053)).

The motion should be denied if withdrawal would prejudice the client. (Rules Prof. Conduct, Rule 3-700(A)(2); Weil & Brown, Cal. Prac. Guide: Civ. Pro. Before Trial, 9:385.2 (2008); 1 Witkin Cal. Pro., Attorneys §72 (2008).) The motion should be denied if it will cause undue delay in the proceeding or cause injustice. (Mandell v. Superior Court, (1977) 67 Cal.App.3d 1, 4.) The determination whether to grant or deny an attorney's motion to withdraw as counsel of record lies within the sound discretion of the trial court, having in mind whether such withdrawal might work an injustice in the handling of the case. (Lempert v. Superior Court (2003) 112 Cal.App.4th 1161, 1173.) A breakdown in the attorney-client relationship (or personality clash) is grounds for withdrawal. (Estate of Falco (1987) 188 Cal.App.3d 1004, 1014.) An attorney is not limited to withdrawing from a case for cause and may withdraw when withdrawal can be accomplished without undue prejudice to the client. (Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.)

Discussion

Plaintiff counsel's notice of motion and motion to be relieved as counsel is made on the proper Judicial Council of California form MC-051. The notice of motion and motion complies with Cal. Rules of Court, rule 3.1362(a).

Plaintiff's counsel provided a declaration stating that: "[t]here has been a breakdown in the attorney client relationship in that counsel and client cannot agree on certain critical issues, such that it is impossible to continue with the representation of client." (Duke Decl., ¶ 2.) The declaration is on the proper Judicial Council of California form MC-052 and complies with Cal. Rules of Court, rule 3.1362(c).

As for service, Plaintiff's counsel has provided proper proofs of service for the notice of motion and motion and the declaration to the client and Defendant's counsel. Service complies with Cal. Rules of Court, rule 3.1362(d).

The proposed order has been prepared on the correct Judicial Council of California form MC-053 and has been lodged with the court with the moving paper. The proposed order complies with Cal. Rules of Court, rule 3.1362(e).

The next scheduled hearing is the July 27, 2026 Case Management Conference.